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Waldorf man found guilty for second-degree murder during forklift theft

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Dec 16, 2025



The Charles County Circuit Courthouse is in La Plata.

Southern Maryland News file photo

A Charles County jury, after a seven-day trial, found a 22-year-old Waldorf man guilty of second-degree murder for killing a 73-year-old woman during a forklift theft.

Bryce Caleb Timothy Brown's face remained blank as the jury found him not guilty for first-degree murder but guilty of four other felonies — second-degree murder, theft of \$25,000 to under \$100,000, theft of \$1,500 to under \$25,000 and unlawful taking of a motor vehicle.

Brown was also found guilty of four misdemeanors — two counts of fourth-degree burglary along with malicious destruction of property over \$1,000 and rogue and vagabond.

Charles County Circuit Court Judge William R. Greer Jr. oversaw the trial.

According to documents, Brown stole a Yale forklift valued at \$20,000 and used it to bash open the steel storage doors on the southern end of the Lowe's on Crain Highway.

Brown allegedly drove the forklift through a chain link double gate at the north end of the store to leave the area before employees at the store could stop him, documents said. He then fled the area on the machine.

Police say Brown drove about half a mile to the Home Depot in the 12000 block of Jefferson Farm Place in Waldorf where he ran into a 2019 Lincoln MKZ belonging to Gloristine Pinkney, 73, of Waldorf.

Pinkney was found deceased by officers underneath the forklift after Brown allegedly chased her and ran her down.

Cause of death was multiple injuries externally and internally, Edernst Noncent, medical examiner for the Office of Chief Medical Examiner Maryland, said during witness testimony.

There were lacerations around the scalp, multiple fractures, crushed ribs, brush burns and some of the organs looked like they were “turned into a pulp” caused by being crushed, the medical examiner said.

Some marks on the victim were “grossly consistent” of tire marks, but Noncent could not agree that they were tire marks.

“I know [it’s] disturbing the jury, but [it’s] pretty important,” defense attorney Hammad Matin said while showing a photo of the victim on an autopsy table.

The case comes down to intent, Tiffany Campbell, attorney with the state’s office, said during closing arguments.

The Charles sheriff’s office pulled video surveillance that showed Brown driving the forklift and driving into the roll up doors. It shows “exactly what he is doing,” Campbell said.

Not only was Pinkney’s death an accident, but it was a “botched” investigation, Matin said during his closing argument Monday. Police didn’t conduct an accident reconstruction and did not ask for video enhancement, he said.

“All they have is the statement,” Matin said. “[Brown] was being interrogated while going through a mental health crisis.”

During his statement, Brown mentions going through a transformation, “mirror scrying” and being watched. Brown kept saying Lowe’s employees followed him to his house and put items in the aisle while he worked, according to the defense attorney.

Also during his statement to police, Detective Eric Weaver with the Charles sheriff's office kept interrupting Brown, Matin said. He did not ask follow up questions when Brown said he "pursued" Pinkney when she got out of her vehicle or if he was suffering from mental illness or on drugs.

Matin claimed Weaver did not know what was being tested during the investigation. Weaver admitted that part of his testimony was wrong when he said Brown told him that he "smeared" Pinkney's blood on the hood of her car.

"Criminal activity doesn't always make sense," Jonathan Beattie, assistant state's attorney, said during the state's rebuttal to the defense on Monday. "Why you do something only makes sense to you."

Around 3:20 a.m. the day of the incident, Brown drove up to his house in Pinkney's car, drove by the crime scene then drove Route 5 to avoid Route 301, Beattie said. He then used the victim's debit card and identification card to buy gas.

"He saw her and made a choice," Beattie said. "That's what murder is ... even if it's brief. He chose to act and unfortunately that cost Ms. Pinkney her life."

A sentencing date was scheduled for Feb. 13 at 2 p.m.
